

Summons and Verified Complaint
were filed with the Clerk of the
Court on _____.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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HUMBERTO DIAZ,

Index No.: _____.

Plaintiff,

Plaintiff designates BRONX
COUNTY as the place of trial. The
basis of venue is place of occurrence.

-against-

SUMMONS

THE CITY OF NEW YORK, a municipal corporation,
NEW YORK CITY POLICE DEPARTMENT - POLICE
SERVICE AREA 7 (PSA7), POLICE OFFICER
CHRISTOPHER DOMINQUEZ (Shield #23809),
“JOHN DOE A” whose name and shield number is
unknown but is a POLICE OFFICER stationed at the New
York City Police Department - Police Service Area 7
(PSA7), and “JOHN DOE B” whose name and shield
number is unknown but is a POLICE OFFICER stationed
at the New York City Police Department - Police Service
Area 7 (PSA7), all of whom are sued individually
and in their official capacities,

Defendants.

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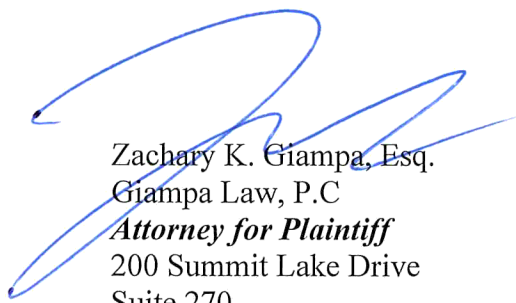
TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a
copy of your answer or, if the complaint is not served with this summons, to serve a notice of
appearance on the Plaintiff's attorney within twenty (20) days after the service of this summons,
exclusive of the date of service [or within thirty (30) days after the service is complete if this
summons is not personally delivered to you within the State of New York]; and in case of your
failure to appear or answer, judgment will be taken against you by default for the relief demanded

in the complaint.

Dated: Westchester, New York
March 16, 2023

Yours, etc.,



Zachary K. Giampa, Esq.
Giampa Law, P.C
Attorney for Plaintiff
200 Summit Lake Drive
Suite 270
Westchester, New York 10595
(914) 619-4225

Defendants' Address:

THE CITY OF NEW YORK Comptroller of the City of New York,
Municipal Building – Room 1225,
1 Centre Street,
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT - POLICE SERVICE AREA 7 (PSA7)
737 Melrose Avenue
Bronx, NY 10455

POLICE OFFICER CHRISTOPHER DOMINQUEZ (Shield #23809)
737 Melrose Avenue
Bronx, NY 10455

JOHN DOE A
737 Melrose Avenue
Bronx, NY 10455

JOHN DOE B
737 Melrose Avenue
Bronx, NY 10455

Summons and Verified Complaint
were filed with the Clerk of the
Court on _____.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

HUMBERTO DIAZ,

Index No.: _____.

Plaintiff,

-against-

COMPLAINT

THE CITY OF NEW YORK, a municipal corporation,
NEW YORK CITY POLICE DEPARTMENT - POLICE
SERVICE AREA 7 (PSA7), POLICE OFFICER
CHRISTOPHER DOMINQUEZ (Shield #23809),
“JOHN DOE A” whose name and shield number is
unknown but is a POLICE OFFICER stationed at the New
York City Police Department - Police Service Area 7
(PSA7), and “JOHN DOE B” whose name and shield
number is unknown but is a POLICE OFFICER stationed
at the New York City Police Department - Police Service
Area 7 (PSA7), all of whom are sued individually
and in their official capacities,

Defendant(s).

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The plaintiff, HUMBERTO DIAZ, complaining of the defendants by his attorney,
Zachary K. Giampa, Esq. of Giampa Law, P.C., respectfully shows to this Court and alleges as
follows upon information and belief:

1. That at all times herein mentioned, the plaintiff, HUMBERTO DIAZ, was and still is a
resident of the County of New York, City and State of New York.
2. Upon information and belief, at all times herein mentioned, the defendant, THE CITY OF
NEW YORK (hereinafter “CITY”), was and still is a municipal corporation, duly organized and

existing under and by virtue of the laws of the State of New York with its principal offices located at 1 Centre Street, New York, New York.

3. Upon information and belief, at all times herein mentioned, the defendant, CITY, was and still is a public benefit corporation, duly organized and existing under and by virtue of the laws of the State of New York.

4. Upon information and belief, at all times herein mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT - POLICE SERVICE AREA 7 (PSA7) (hereinafter "NYPD-PSA7") was and still is a department or agency for defendant, CITY, that was and is responsible for the appointment, training, supervision, promotion or discipline of police officers of the defendant, NYPD-PSA7, including defendants, POLICE OFFICER CHRISTOPHER DOMINQUEZ (Shield #23809) (hereinafter "P.O. DOMINGUEZ"), JOHN DOE A (hereinafter "DOE A"), and JOHN DOE B (hereinafter "DOE B").

5. That on or about July 6, 2022, plaintiff duly presented and served upon defendant, CITY, its agents, servants and/or employees, his Notice of Claim and by serving and filing same upon said defendant after accrual of plaintiff's claim pursuant to the statutes in such cases made and provided.

6. That although more than thirty (30) days have elapsed since the presentation and service of said Notice of Claim, defendant, CITY, its agents, servants and/or employees, has failed to make any adjustment and/or payment of said claim.

7. That a 50-H hearing of plaintiff was conducted by defendant, CITY, its agents, servants and/or employees, within one year of the accrual of this claim, to wit, on January 19, 2023.

8. That this action is commenced within one year and ninety (90) days from the date of

accrual of plaintiff's claims pursuant to the statutes in such case made and provided.

9. That at approximately 9:00 p.m. on May 10, 2022, plaintiff HUMBERTO DIAZ, a twenty-two (22) year old Hispanic male, was physically assaulted and falsely arrested through excessive force by defendants P.O. DOMINGUEZ, DOE A and DOE B around 152nd Street and Cortlandt Avenue between the PS1 elementary school and Alfred E. Smith High School.

10. Plaintiff HUMBERTO DIAZ was lawfully on the PS1 premises when defendants P.O. DOMINGUEZ, DOE A, and DOE B approached him and chased him up a chain fence that separated the tennis courts from the football field. Plaintiff was on top of the fence when defendant P.O. DOMINGUEZ shook the fence with the intent of having him fall off the fence and onto the ground.

11. Defendants P.O. DOMINGUEZ, DOE A and DOE B began yelling and surrounding the plaintiff with the intent of apprehending him after he fell from the fence. This fence is approximately 18 feet tall on the tennis side and three stories tall on the football side. Plaintiff plunged down three stories onto the football field after defendant P.O. DOMINGUEZ shook the fence. Defendants P.O. DOMINGUEZ, DOE A and DOE B then used excessive force to arrest the plaintiff.

12. Plaintiff sustained closed head and traumatic brain injury, internal bleeding, stitches on the right leg due to the bursting of the leg/foot, falling injuries to the neck, back and the entire right side of his body and a fractured right leg and shattered right heel that required surgery at Lincoln Hospital.

**AS AND FOR PLAINTIFF'S FIRST CAUSE OF ACTION
AGAINST DEFENDANTS P.O DOMINGUEZ,
JOHN DOE A, and JOHN DOE B
- Assault -**

13. The plaintiff, HUMBERTO DIAZ, repeats, reiterates and realleges each and every allegation contained in the paragraphs numbered “1” through “12” above with the same force and effect as if set down hereagain in full.

14. Defendants P.O. DOMINGUEZ, DOE A, and DOE B. acting as the agents, servants and employees of the defendants, placed the plaintiff in apprehension of imminent harmful or offensive contact.

15. As a direct and proximate result of the assault, plaintiff was subjected to great physical and emotional pain and humiliation, was deprived of his liberty and was otherwise damaged or injured.

**AS AND FOR PLAINTIFF’S SECOND CAUSE OF ACTION
AGAINST DEFENDANTS P.O. DOMINGUEZ,
JOHN DOE A, and JOHN DOE B
- Battery –**

16. The plaintiff, HUMBERTO DIAZ, repeats, reiterates and realleges each and every allegation contained in the paragraphs numbered “1” through “15” above with the same force and effect as if set down hereagain in full.

17. When defendant P.O. DOMINGUEZ shook the fence to cause the plaintiff to fall and then arrested him with the assistance of defendants DOE A, and DOE B, defendant P.O. DOMINGUEZ subjected the plaintiff to a harmful or offensive bodily contact. Defendant P.O. DOMINGUEZ intended to make that contact without the consent of the plaintiff.

18. As a direct and proximate result of the battery by defendant P.O. DOMINGUEZ, plaintiff was subjected to great physical and emotional pain and humiliation, was deprived of his liberty and was otherwise damaged or injured.

AS AND FOR PLAINTIFF’S THIRD CAUSE OF ACTION

**AGAINST DEFENDANTS P.O. DOMINGUEZ,
JOHN DOE A, and JOHN DOE B
- False Imprisonment -**

19. The plaintiff, HUMBERTO DIAZ, repeats, reiterates and realleges each and every allegation contained in the paragraphs numbered “1” through “18” above with the same force and effect as if set down hereagain in full.

20. The plaintiff was aware of his arrest and confinement as described in paragraph 11, and the plaintiff did not consent to that arrest or confinement.

21. Defendants P.O. DOMINGUEZ, DOE A, and DOE B intended to confine the plaintiff and the confinement was not privileged or authorized by any warrant, order, or other legal right.

22. As a direct and proximate result of the false imprisonment by defendants P.O. DOMINGUEZ, DOE A, and DOE B, the plaintiff was subjected to great physical and emotional pain and humiliation, was deprived of his liberty and was otherwise damaged or injured.

**AS AND FOR PLAINTIFF’S FOURTH CAUSE OF ACTION
AGAINST DEFENDANTS P.O. DOMINGUEZ,
JOHN DOE A, and JOHN DOE B
- False Arrest -**

23. The plaintiff, HUMBERTO DIAZ, repeats, reiterates and realleges each and every allegation contained in the paragraphs numbered “1” through “22” above with the same force and effect as if set down hereagain in full.

24. Defendants P.O. DOMINGUEZ, DOE A, and DOE B lacked probable cause to conduct an arrest. The arrest was not based upon trustworthy facts or knowledge sufficient to warrant a reasonable person to believe that the plaintiff committed a crime.

25. As a direct and proximate result of the false arrest by defendants P.O. DOMINGUEZ, DOE A, and DOE B, the plaintiff was subjected to great physical and emotional pain and humiliation, was deprived of his liberty and was otherwise damaged or injured.

**AS AND FOR PLAINTIFF'S FIFTH CAUSE OF ACTION
AGAINST DEFENDANTS CITY OF NEW YORK and
NEW YORK CITY POLICE DEPARTMENT - POLICE
SERVICE AREA 7 (PSA7)**

- Negligence -

26. The plaintiff, HUMBERTO DIAZ, repeats, reiterates and realleges each and every allegation contained in the paragraphs numbered "1" through "25" above with the same force and effect as if set down hereagain in full.

27. Upon information and belief, all of the acts and omissions by the individual defendants were carried out with full knowledge, consent and cooperation, and under the supervisory authority of defendants CITY and NYPD-PSA7.

28. Upon information and belief, defendants CITY and NYPD-PSA7, by their policy-making agents, servants and employees, authorized, sanctioned and/or ratified these individual defendants' wrongful acts and omissions; and/or failed to prevent or stop these acts and omissions; and/or allowed or encouraged these acts and omissions to continue.

29. Moreover, upon information and belief, the acts and omissions of the individual defendants resulted from and were taken pursuant to a defect policy and/or well-settled and widespread custom and practice of the defendants CITY and NYPD-PSA7 which is implemented by police officers of the defendants CITY and NYPD - PSA 7 inter alia: to summarily, without efforts to explain or conciliate, punish persons who question the manner, authority or directives of police officers of the defendants CITY and NYPD-PSA7 and/or who do not capitulate to every demand, whether proper or improper, made by said officers.

30. Upon information and belief, the existence of such de facto policies and/or well-settled

and widespread customs and practices has been known to supervisory and policymaking officers and officials of the defendants CITY and NYPD-PSA7, including but not limited to New York City Police Officers, for a substantial period of time.

31. Upon information and belief, despite knowledge of such illegal de facto policies, customs and practices, the supervisory and policy-making officers and officials of the defendants CITY and NYPD-PSA7 have not taken steps to terminate these policies, customs and practices; have not disciplined individuals who engage in such customs and practices; have not otherwise properly trained police officers with regard to the constitutional and statutory limits on the exercise of their authority; and have instead sanctioned and ratified these policies, customs and practices through their deliberate indifference to, or negligent disregard of, the effect of said policies, customs and practices upon the constitutional rights of persons, particularly persons of color in the defendants CITY and NYPD-PSA7.

32. Upon information and belief, and without limiting the foregoing, the defendants CITY and NYPD-PSA7 have specifically failed to terminate said practices by failing to properly train, instruct, and discipline police officers with regard to probable cause for arrest.

33. Upon information and belief, and without limiting the foregoing, the defendants CITY and NYPD-PSA7 have specifically failed to terminate said practices by failing to properly train, instruct, and discipline police officers with respect to their use of authority.

34. Upon information and belief, and without limiting the foregoing, the defendants CITY and NYPD-PSA7 have specifically failed to terminate said practices by failing to properly train, instruct, and discipline police officers with regard to their duty to protect civilians from another officer's misconduct.

35. Upon information and belief, and without limiting the foregoing, the defendants CITY and NYPD-PSA7 have permitted police officers to maintain “the blue wall of silence” and to conceal and fail to report the misconduct of other police officers.

36. The knowing and repeated failure of defendants CITY and NYPD-PSA7 to properly supervise, train and discipline said officers actually caused the injuries to plaintiff alleged herein.

37. Upon information and belief, defendants CITY and NYPD-PSA7 knew or should have known that the acts alleged herein would deprive plaintiff of his rights without due process of law, in violation of the Fifth and Fourteenth Amendments to the United States Constitution and Articles 1, §§6 and 11 of the Constitution of the State of New York, including without limitation, Plaintiff’s rights to freedom from deprivation of liberty without due process of law, freedom from false arrest and imprisonment, equal protection of the laws, and equal privileges and immunities under the laws.

38. Defendants CITY and NYPD-PSA7 are also directly liable and responsible for the acts of the individual Defendants under the doctrine of *respondeat superior*.

**AS AND FOR PLAINTIFF’S SIXTH CAUSE OF ACTION
AGAINST DEFENDANTS CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT -
POLICE SERVICE AREA 7 (PSA7)
- Negligent Supervision -**

39. The plaintiff, HUBERTO DIAZ, repeats, reiterates and realleges each and every allegation contained in the paragraphs numbered “1” through “38” above with the same force and effect as if set down hereagain in full.

40. Defendants CITY and NYPD-PSA7, by and through its policymakers, created and maintained a custom, policy and/or practice of failing to adequately train, supervise and

discipline its employees and agents, including the individual defendants in this case.

41. Defendants CITY and NYPD-PSA7 had actual or constructive notice of its failures to train, supervise and discipline its employees. This is because defendants knew that it was foreseeable that police officers would confront situations protections of all persons under the law and that without the necessary training, supervision and discipline, constitutional violations would result. Yet defendants CITY and NYPD-PSA7 chose not to provide such training, supervision and discipline.

42. This failure to train, supervise and discipline amounted to gross negligence, deliberate indifference or intentional misconduct, and encouraged and/or permitted the individual defendants to engage in the conduct which proximately and directly caused plaintiff's injuries and damages set forth above.

**AS AND FOR PLAINTIFF'S SEVENTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS
- Constitutional Violation – 42 U.S.C. § 1983 –**

43. The plaintiff, HUMBERTO DIAZ repeats, reiterates and realleges each and every allegation contained in the paragraphs numbered "1" through "42" above with the same force and effect as if set down hereagain in full.

44. The conduct and actions of defendants, P.O. DOMINGUEZ, DOE A, and DOE B, acting in concert and under color of state law and which were carried out with the full knowledge, consent and cooperation of defendants CITY and NYPD-PSA7, in authorizing, allowing and/or causing plaintiff to be assaulted without intervening or preventing such assault was done intentionally, willfully, maliciously, with a deliberate indifference and/or with reckless disregard for the natural and probable consequences of their acts, was done without lawful

justification or reason and was designed to and did cause specific and serious physical and emotional pain and suffering in violation of plaintiff's rights as guaranteed under 42 U.S.C. § 1983 thereby depriving plaintiff of his rights, privileges and immunities secured by the Eighth and Fourteenth Amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights:

- a. Freedom from false arrest and imprisonment; and
- b. Due process, equal protection, privileges and immunities under the laws.

45. As a direct and proximate result of the foregoing, plaintiff was subjected to great physical and emotional pain and humiliation, was deprived of his liberty and was otherwise damaged or injured.

**AS AND FOR PLAINTIFF'S EIGHTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS
- Excessive Force -**

46. The plaintiff, HUMBERTO DIAZ, repeats, reiterates and realleges each and every allegation contained in the paragraphs numbered "1" through "45" above with the same force and effect as if set down hereagain in full.

47. Upon information and belief, at all times herein mentioned, defendants P.O. DOMINGUEZ, DOE A, and DOE B, all of whom are sued individually and in their official capacities, deprived the plaintiff of his constitutional rights, including the right to be free from the intentional use of excessive force.

48. Upon information and belief, at all times herein mentioned, defendants P.O. DOMINGUEZ, DOE A, and DOE B intentionally or tacitly approved the use of excessive force upon the plaintiff.

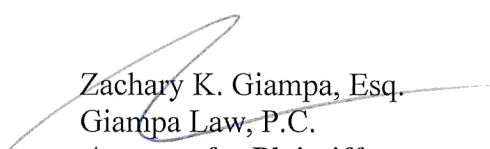
49. The conduct and actions of defendants, P.O. DOMINGUEZ, DOE A, and DOE B, acting in concert and which were carried out with the full knowledge, consent and cooperation of defendants CITY and NYPD-PSA7, in authorizing, allowing and/or causing plaintiff to be deprived of his constitutional rights, including the right to be free from the intentional use of excessive force.

50. As a direct and proximate result of the foregoing, plaintiff was subjected to great physical and emotional pain and humiliation, was deprived of his liberty and was otherwise damaged or injured.

WHEREFORE, plaintiff, HUMBERTO DIAZ, demands judgment against the defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT - POLICE SERVICE AREA 7 (PSA7), POLICE OFFICER CHRISTOPHER DOMINQUEZ (Shield #23809), JOHN DOE A, JOHN DOE B, in an amount to be determined at trial, together with interest, costs and disbursements of this action.

Dated: Westchester, New York
March 16, 2023

Yours, etc.,


Zachary K. Giampa, Esq.
Giampa Law, P.C.
Attorney for Plaintiff
200 Summit Lake Drive
Suite 270
Westchester, New York 10595
(914) 619-4225

VERIFICATION

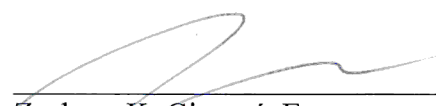
STATE OF NEW YORK)
)
COUNTY OF WESTCHESTER)ss.:

I, the undersigned am an attorney duly admitted to practice in the Courts of New York State and I am the attorney of record in the within action; I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof, the same is true to my own knowledge, except as to those matters stated to be alleged upon information and belief, and as to those matters, I believed it to be true.

This verification is made by the undersigned and not by the plaintiff because plaintiff resides in a county other than the county in which the undersigned attorney maintains offices. The grounds too my belief as to all matters not stated upon my own knowledge are as follows: Investigations, conversations with my client and records maintained in my client's file.

I affirm that the foregoing statements are true, under the penalties of perjury.

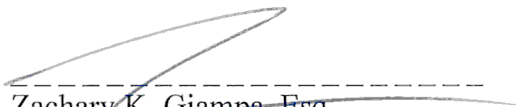
Dated: Westchester, New York
16 Day of March, 2023


Zachary K. Giampá, Esq.

STATEMENT PURSUANT TO 22 NYCRR 130-1.1

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the Courts of the State of New York, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: Westchester, New York
March 16, 2023



Zachary K. Giampa, Esq.
Giampa Law, P.C.
Attorney for Plaintiff
200 Summit Lake Drive
Suite 270
Westchester, New York 10595
(914) 619-4225